IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No224

CP(CAA)/42(AHM)2022
in
CA(CAA)/06(AHM)2022

Proceedings under Section 230-232 of Co. Act,2013

IN THE MATTER OF:

Sphere Bio- Arc Private Limited **.....Applicant**
Grace Bio-Arc Private Limited

.....Respondent

Order delivered on 07/12/2022

Coram:

Dr. Deepti Mukesh, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant	: Mr. Niraj Trivedi, PCS
For the Income Tax	: Ms. Pankti Shah, Adv.
For the RD	: Mr. B Rama Ambedkar, Asst. Director

ORDER

Mr. Ambedkar, Asst. Director of RD states that to the query raised by the department, petitioner has filed their response and subject to the undertaking, office does not have any objection. None appears for OL. Learned Counsel Ms. Shah for Income Tax states that they do not have any objection as the transferee company has undertaken to pay the tax arrears on their finalisation after pending appeal is decided. Learned PCS Mr. Trivedi for the petitioner states that the tax matter is pending before its Appellate Authority. OL is directed to remain present on the next date of hearing. Let copy of this order be served on OL.

List for hearing on 15.12.2022

-Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-Sd-

DR. DEEPTI MUKESH
MEMBER (JUDICIAL)

Prakash - Steno